EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 8954/09
Mahammad RZAYEV
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 9 January 2018 as a Committee composed of:

Erik Møse, *President,*
Síofra O'Leary,
Lətif Hüseynov, *judges,*

and Anne-Marie Dougin, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 29 January 2009,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant, Mr Mahammad Rzayev, is an Azerbaijani national, who was born in 1975 and lives in Nakhchivan. He was represented before the Court by Mr I. Aliyev and Mr J. Hasanov, lawyers practising in Azerbaijan.

2. The applicant complained under Article 11 of the Convention that the refusal by the State authorities to register an association which he had founded had amounted to a violation of his right to freedom of association. He further complained under Article 6 of the Convention about a violation of his right of access to court. Lastly, he also complained that the authorities had seized the case file relating to his application from the office of Mr Aliyev, his representative, infringing his right of individual application under Article 34 of the Convention.

3. On 11 October 2016 the applicant's complaints detailed above were communicated to the Azerbaijani Government ("the Government"), who were represented by their Agent, Mr Ç. Asgarov.

4. On 6 February 2017 the Government submitted to the Registry their observations on the admissibility and merits of the application. These were forwarded to the applicants, who were invited to submit observations in reply by 31 March 2017.

5. On 12 February 2017 the applicant informed the Court that he wanted to withdraw the application since the matter had been resolved and the association he had founded had been registered. A copy of this letter was sent for information both to the Government and the applicant's representative, Mr I. Aliyev.

6. On 10 April 2017 the applicant's representative, Mr I. Aliyev, informed the Registry that he had been unable to get in touch with the applicant because he had allegedly permanently left the country. The representative nevertheless submitted observations on the admissibility and merits of the application of his own accord and asked for an additional period of fifteen days in order to "continue the attempts to contact Mr Rzayev".

7. On 25 April 2017 the representative informed the Registry that he had been unable to re-establish contact with the applicant. No further correspondence has been forthcoming concerning this matter.

THE LAW

8. The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 1 February 2018.

Anne-Marie Dougin
Acting Deputy Registrar

Erik Møse
President